

IN THE
Supreme Court of the United States

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OFFICE, U.S. IMMIGRATION AND CUSTOMS ENFORCEMENT,
Petitioner,

—V.—

RICARDO APARECIDO BARBOSA DA CUNHA,
Respondent.

ON PETITION FOR A WRIT OF CERTIORARI TO THE
UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

RESPONSE TO PETITION FOR A WRIT OF CERTIORARI

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QUESTION PRESENTED

Thirty years ago, Congress enacted the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (“IIRIRA”), Pub. L. 104–208, 110 Stat. 3009-546, with distinct detention provisions for individuals in different circumstances. One section, 8 U.S.C. § 1226(a), governs detention during removal proceedings for noncitizens who entered the country and allows for their release on bond or conditions. A different detention provision, 8 U.S.C. § 1225(b)(2)(A), imposes mandatory detention without the possibility of bond for noncitizens who have not yet entered the country and are “seeking admission” into the United States.

The question presented is whether the court of appeals correctly determined that Respondent—a long-time resident who entered the country years ago and was arrested inside the United States—is subject to the detention and bond regime under § 1226(a), and not mandatory detention under § 1225(b)(2)(A).

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INTRODUCTION

This case concerns the government’s recent radical reinterpretation of the Immigration and Nationality Act (“INA”) to require detention without the possibility of bond of Respondent Ricardo Aparecido Barbosa da Cunha, a long-time resident who entered the United States without inspection years ago and has since established a life and family here. For nearly three decades after the enactment of the current version of the INA, the government interpreted 8 U.S.C. § 1226(a) to permit noncitizens like Mr. Barbosa da Cunha to be released on bond while their removal proceedings are pending. But in 2025, the government suddenly reversed its interpretation, asserting that the immigration laws require detaining such noncitizens without a bond hearing under a different statute, 8 U.S.C. § 1225(b)(2). The government then arrested Mr. Barbosa da Cunha—who had made himself known to the government because he voluntarily came forward to file an asylum application—and kept him in custody with no opportunity for bond.

At no point has the government claimed that Mr. Barbosa da Cunha poses a flight risk or danger. After the district court ordered a bond hearing, an immigration judge found that he presented neither a danger nor a flight risk and ordered his release. Instead, the government’s sole justification for Mr. Barbosa da Cunha’s detention is its novel and countertextual reading of the INA, which no presidential administration or court adopted before 2025: that § 1225(b)(2)(A), *mandates* Mr. Barbosa da Cunha’s detention even though that provision applies

only to noncitizens who are “seeking admission” into the United States.

The government’s new interpretation contradicts the INA. Thus far, seven out of nine circuits—namely, the First, Second, Sixth, Seventh, Ninth, Tenth and Eleventh Circuits—and about 530 district court judges have rejected the government’s new interpretation.¹ Only the Fifth and Eighth Circuits have blessed the government’s reinterpretation, over vigorous dissents in each case.

The government asks the Court to hold its petition in this case pending resolution of its petition in a related case from the Sixth Circuit, *see Raycraft v. Lopez-Campos*, No. 25-1415 (cert. pet. filed June 22, 2026), and then dispose of this petition accordingly. But while there is no dispute that the statutory question here has generated a circuit split, *Lopez-Campos* is not the best vehicle to resolve that split because the Sixth Circuit also reached—and the government is seeking review of—an unnecessary due process holding that the Constitution requires bond hearings for individuals in Mr. Barbosa da Cunha’s circumstances. There is no split on the additional constitutional question and, equally to the point, this

¹ The number of district court judges reflects reporting on available data updated as of August 17, 2026. *See* Kyle Cheney & Jessie Blaeser, *Explore the data: More than 17,600 rulings against Trump in ICE cases*, Politico (Aug. 18, 2026), <https://perma.cc/36R7-RG2G> (click “view live page” for all detention cases). Prior reporting providing different figures derives from a predecessor database that, as of this filing, is no longer updated.

Court need not ever reach that question if Respondent here or the petitioners in *Buenrostro-Mendez* prevail on the statutory question. So, instead of holding the petition here as the government requests, the Court should grant review only on the statutory question on which the circuits are divided, either this case or the pending petition out of the Fifth Circuit. See *Buenrostro-Mendez v. Blanche*, No. 26-43 (cert. pet. filed July 2, 2026).

The constitutional question presented in *Lopez Campos* also substantially overlaps with constitutional issues raised in another case currently pending before the Court, *Genalo v. Black*, No. 25-886 (cert. granted June 15, 2026). *Genalo* concerns an as-applied due process challenge to 8 U.S.C. § 1226(c), a provision of the immigration laws prescribing mandatory detention for certain noncitizens in removal proceedings. The Court's disposition of *Genalo* is highly likely to inform the proper resolution of the constitutional question presented in *Lopez Campos*—to the extent the Court ever need reach it. In particular, this Court should give the lower courts the opportunity to evaluate the constitutional question in light of *Genalo*.

The Court should not indulge the government's attempt to tack on an extraneous constitutional question that would not be independently certworthy and whose resolution may well turn on a different merits case already slated for argument in October. Rather, basic principles of judicial restraint counsel in favor of denying the second question at this juncture.

The Court should therefore grant the petition here. In the alternative, the Court should grant the

petition in *Buenrostro-Mendez* and hold this petition pending a decision on the statutory question there and dispose of it as appropriate.

STATEMENT OF THE CASE

I. STATUTORY BACKGROUND

A. The Immigration Detention Statutes

This case concerns the relationship between two civil immigration detention statutes that Congress enacted simultaneously in 1996 as part of a comprehensive overhaul of the immigration laws: 8 U.S.C. § 1226 and § 1225(b)(2)(A). *See* IIRIRA, Pub. L. No. 104-208, 110 Stat. 3009 (1996).

Section 1226. Section 1226 governs the detention of individuals who have effected an entry into the United States and are “present in the country” pending their removal proceedings. *Jennings v. Rodriguez*, 583 U.S. 281, 288 (2018). The default rule provides that “[o]n a warrant issued by the Attorney General,² an alien may be arrested and detained pending a decision on whether the alien is to be removed from the United States” and allows their release on bond. 8 U.S.C. § 1226(a).³ By regulation, noncitizens may seek a bond hearing before an immigration judge, who makes individualized

² Congress transferred this authority from the Attorney General to the Secretary of Homeland Security following relocation of immigration enforcement functions to the Department of Homeland Security in 2002 and 2003. *See* 6 U.S.C. § 557; 8 U.S.C. § 1003(a)(1).

³ A separate provision of the Act provides for warrantless arrests in certain circumstances. *See* 8 U.S.C. § 1357(a)(2).

determinations of flight risk and danger. *See* 8 C.F.R. §§ 1003.19(a), (h)(2), 1236.1(c)(8), (d).

Some noncitizens are not eligible for release under § 1226(a)’s default rule. *See* 8 U.S.C. § 1226(a) (providing for detention and release “[e]xcept as provided in subsection (c)”). Section 1226(c), as enacted in IIRIRA, provides that four enumerated categories of noncitizens “shall” be detained pending removal proceedings and prohibits their release on bond. These are individuals who fall under certain criminal and national security grounds. *See* 8 U.S.C. § 1226(c)(1)(A)–(D).

In 2025, Congress passed the Laken Riley Act, Pub. L. 119-1, 139 Stat. 3 (2025), which amended § 1226(c) to mandate detention for an additional category of individuals who are inadmissible, including for being present without admission, and have other criminal history. *See* 8 U.S.C. § 1226(c)(1)(E).

Section 1225. In IIRIRA, Congress also enacted § 1225, a statute governing inspection of noncitizens and a new “expedited removal” procedure. Section 1225(a)(1) provides that a noncitizen “present in the United States who has not been admitted or who arrives in the United States . . . shall be deemed” an “applicant for admission.” *Id.* § 1225(a)(1).

Section 1225 also includes provisions for detention that are entirely distinct from § 1226. Paragraph 1225(b)(1) authorizes the mandatory detention of noncitizens placed into expedited removal proceedings—“arriving” noncitizens as well as certain other applicants for admission. *Id.* § 1225(b)(1)(A)(i), (b)(1)(A)(iii), (b)(1)(B)(ii) & (b)(1)(B)(iii)(IV).

Specifically, the Executive has the option of applying expedited removal to noncitizens present in the country without admission who have been present for less than two years. *See id.* § 1225(b)(1)(A)(iii). As the name suggests, expedited removal proceedings are designed to summarily remove certain noncitizens who lack documentation or seek an immigration benefit through fraud or misrepresentation, and who have been present for limited time periods. *See also id.* §§ 1182(a)(6)(C), 1182(a)(7) (setting forth inadmissibility grounds that may trigger expedited removal).

The detention provision at issue here, § 1225(b)(2)(A), applies to “other” applicants for admission who are “seeking admission” to the country, *id.*, and are *not* subject to expedited removal, *see id.* § 1225(b)(2)(B)(ii) (stating that § 1225(b)(2)(A) “shall not apply to an alien to whom paragraph [1225(b)](1) applies”). This includes a number of categories, such as noncitizens who present at ports of entry and are charged with inadmissibility on criminal grounds. Section 1225(b)(2)(A) provides that:

in the case of an alien who is an applicant for admission, if the examining immigration officer determines that an alien seeking admission is not clearly and beyond a doubt entitled to be admitted, the alien shall be detained for a [removal] proceeding under section 1229a of this title.

Noncitizens subject to detention under § 1225(b)—either (b)(1) or (b)(2)—have no access to bond. Instead, the only option for release is through a discretionary grant of parole by the Department of Homeland

Security (“DHS”), the jailing authority. *See* 8 U.S.C. § 1182(d)(5)(A) (authorizing DHS to parole the noncitizen “for urgent humanitarian reasons or significant public benefit”).

B. Congress’s Choice in IIRIRA to Preserve the Availability of Bond Generally for Noncitizens in the United States

In IIRIRA’s detention statutes, Congress largely preserved the preexisting detention scheme: Noncitizens arrested inside the country, including those who had entered without admission, remained eligible for release on bond under § 1226(a). Those apprehended at the border continued to be detained without possibility of bond under § 1225(b)(2)(A).

Congress maintained this detention scheme, treating those present in the United States differently from those apprehended near the border, even as IIRIRA made changes to the removal process. Before IIRIRA, the immigration statute tracked a bifurcated system for removing noncitizens: “Deportation” applied to everyone placed in proceedings within the United States—both those who had entered lawfully but were subject to removal (*e.g.*, due to criminal convictions) and those who had entered the United States without inspection and were later apprehended. *See* 8 U.S.C. § 1252(a)(1) (1995). “Exclusion” proceedings applied to people encountered at the border during the inspection process, but who had not yet “enter[ed]” the country. *See id.* §§ 1225(a)–(b) (1995), 1226(a) (1995). For people in deportation proceedings, the statute authorized but did not require arrest and detention “[p]ending a

determination of deportability” and permitted release on bond. *Id.* § 1252(a)(1) (1995). But for noncitizens apprehended at the border and placed in exclusion proceedings, the statute mandated detention without bond. *Id.* § 1225(b) (1995).

IIRIRA changed the removal process in some important ways:

- IIRIRA eliminated the bifurcated system of deportation and exclusion, combining them into a single “removal” procedure that applies to everyone, whether they have previously entered the United States or were stopped at the border. *See* IIRIRA § 304, 110 Stat. at 3009-587-93; *see also* 8 U.S.C. § 1229a.
- IIRIRA also made grounds of removal depend not on physical entry into the United States, but instead on “admission,” defined as a “lawful entry” after inspection by an immigration officer. 8 U.S.C. § 1101(a)(13)(A). Now, a noncitizen who has been “admitted” to the country is “deportable,” *see id.* § 1229a(e)(2)(B), whereas someone who entered the country without inspection and has not been admitted or paroled is “inadmissible,” *see id.* § 1229a(e)(2)(A). *See also id.* §§ 1182, 1227.
- IIRIRA also “deemed” certain categories of noncitizens “applicant[s] for admission,” including noncitizens who are “present in the United States [without having] been admitted” as well as noncitizens who “arrive[] in the United States” either at or outside a “designated port of arrival.” *Id.* § 1225(a)(1).

This put noncitizens who entered without inspection on the same footing in removal proceedings as other “applicants for admission,” confirming that they are both subject to inadmissibility and thus bear the burden of showing that they are “entitled to be admitted and [are] not inadmissible.” *Id.* § 1229a(c)(2)(A).

Even as Congress made these changes, it retained the core of the pre-IIRIRA detention scheme. Congress made § 1226—the new detention statute governing individuals apprehended inside the country—applicable to *both* inadmissible and deportable noncitizens, rather than just deportable noncitizens. *Compare* 8 U.S.C. § 1226(a) (authorizing detention and bond “pending a decision on whether the alien *is to be removed*,” (emphasis added)), *with id.* § 1252(a)(1) (1995) (authorizing detention and bond “[p]ending a determination of deportability”). In this way, the new § 1226 “restate[d]” the provisions in the INA that previously authorized “release on bond” for individuals who entered without inspection. H.R. Rep. No. 104-828, at 210 (1996) (Conf. Rep.); *see also* H.R. Rep. No. 104-469, pt. 1, at 229 (1996) (same). And in § 1225(b)(2)(A), Congress retained the prior rule of detaining, without possibility of bond, individuals who are “seeking admission” at the border and are determined to be inadmissible. 8 U.S.C. § 1225(b)(2)(A).

Congress enacted these detention provisions against the backdrop of the long-established constitutional distinction between noncitizens who have entered the United States (even if without authorization), and noncitizens stopped at the border

seeking to enter. *See, e.g., Shaughnessy v. United States ex rel. Mezei*, 345 U.S. 206, 212 (1953) (“[A]liens who have once passed through our gates, even illegally, may be expelled only after proceedings conforming to traditional standards of fairness encompassed in due process of law.”).

C. IIRIRA and Mandatory Detention

IIRIRA also subjected certain groups of noncitizens inside the country to mandatory detention, without a hearing to assess flight risk and danger. But Congress did so surgically, requiring the Executive to use limited detention resources on targeted classes of noncitizens, including recent entrants who are subject to the new expedited removal proceedings, 8 U.S.C. § 1225(b)(1), and certain noncitizens with final orders of removal awaiting deportation, 8 U.S.C. § 1231(a)(2).

Most importantly, Congress enacted § 1226(c) as a “special rule for aliens who have committed certain dangerous crimes and those who have connections to terrorism.” *Nielsen v. Preap*, 586 U.S. 392, 396 (2019). The provision required detention pending removal proceedings of “a limited class” of noncitizens, *Demore v. Kim*, 538 U.S. 510, 518 (2003), whom Congress found to pose a “heightened risk” of flight or danger. *Preap*, 586 U.S. at 398; *see also Demore*, 538 U.S. at 513, 518–21 (discussing Congress’s findings of bail risk). These include *both* inadmissible and deportable noncitizens. 8 U.S.C. § 1226(c)(1).

To account for § 1226(c)’s anticipated new demands on detention capacity, Congress enacted a safety-valve provision, which allowed the Attorney General to delay implementing new § 1226(c) for up to

two years while the Executive Branch added more detention beds. *See* H.R. Rep. No. 104-469, pt. 1, at 120, 123, 207; IIRIRA § 386(a), 110 Stat. at 3009-653. Congress estimated that § 1226(c)’s new detention mandate would require the detention of 45,000 noncitizens subject to removal on criminal grounds each year. *See* H.R. Rep. No. 104-469, pt. 1, at 118, 120, 123. The Executive Branch promptly invoked the safety-valve provision, citing lack of detention resources.⁴ Congress also directed the agency to add 500 beds to the existing 8,500-bed system. IIRIRA § 386(a), 110 Stat. at 3009-653.

By contrast, Congress did not indicate that § 1225(b)(2)(A)’s detention mandate warranted any implementation delay or increase in detention capacity, as it did for § 1226(c). This was so even though the legislature knew that the population of noncitizens in the United States who entered without inspection was about two million in 1996. *See* H.R. Rep. No. 104-469, pt. 1, at 111 (estimating that individuals who entered without inspection comprised about half of the four million “illegal alien[s]” then living in country).

II. EXECUTIVE BRANCH INTERPRETATION AND PRACTICE

For nearly thirty years after IIRIRA’s enactment, the Executive Branch interpreted the detention statutes consistent with the framework Congress enacted. Contemporaneously with IIRIRA’s enactment, the Executive Branch issued regulations

⁴ Letter from Doris Meissner, Comm’r, Immigr. & Naturalization Servs., to Henry J. Hyde, Chairman, S. Comm. on the Judiciary (Oct. 3, 1997), <https://perma.cc/HFF9-MY3N>.

in March 1997 confirming that noncitizens who were arrested after entering the country without inspection and placed in removal proceedings are eligible for release on bond under § 1226(a). *See* Inspection and Expedited Removal of Aliens; Detention and Removal of Aliens; Conduct of Removal Proceedings; Asylum Procedures, 62 Fed. Reg. 10,312, 10,323 (Mar. 6, 1997); *see also* 8 C.F.R. §§ 1003.19(a) & (h)(2), 1236.1(d).

The Attorney General and Board of Immigration Appeals (“BIA”) likewise interpreted § 1226 to apply to those who entered without inspection in numerous precedential decisions. *See, e.g., Matter of D-J-*, 23 I. & N. Dec. 572, 579 (A.G. 2003) (Attorney General “exercising [his] authority under section [1226]” to grant or deny release on bond to noncitizen who had evaded inspection); *Matter of Castillo-Padilla*, 25 I. & N. Dec. 257, 262 (BIA 2010) (observing that noncitizen who was present without admission or parole was released under § 1226). In contrast, “arriving aliens”—those stopped at the border—and noncitizens subject to § 1226(c)(1) could not seek bond. 62 Fed. Reg. at 10,323, 10,361; *see also* 8 C.F.R. §§ 1236.1(c)(5), 1003.19(h)(2).

III. THE GOVERNMENT’S REVERSAL

In the summer of 2025, the government adopted a novel interpretation of the detention statutes. DHS, in coordination with the Department of Justice (“DOJ”), “determined” in an unpublished guidance document, without reasoning or explanation, “that section [1225] of the [INA], rather than section [1226], is the applicable immigration detention authority for all applicants for admission,” including anyone who

entered without inspection.⁵ DHS instructed its officers to subject any noncitizen present in the United States without being admitted or paroled to mandatory detention under § 1225(b)(2)(A), explaining that these “applicants for admission” would now be “treated in the same manner that ‘arriving aliens’ have historically been treated.”⁶ Three months later, the BIA adopted DHS’s new interpretation in a published decision, *Matter of Yajure Hurtado*, 29 I. & N. Dec. 216 (BIA 2025).

As a result, the government is attempting to apply § 1225(b)(2)(A) and deny bond hearings not only at the border, but also to noncitizens who entered without admission apprehended anywhere within the United States, regardless of how long they have lived here. Millions of noncitizens could be affected by the government’s new interpretation.⁷

IV. THE PRESENT LITIGATION

Mr. Barbosa da Cunha is a Brazilian national who entered the United States without inspection in 2004 or 2005 and has lived here ever since. Pet. App. 7a. He owns a home in Massachusetts where he lives with his wife and two U.S.-citizen children and owns and operates a small construction business. *Id.* He applied for asylum in 2016 and has been granted legal

⁵ Memorandum from DHS & DOJ to all ICE Employees (July 8, 2025), <https://perma.cc/SNA2-XNSZ>.

⁶ *Id.*

⁷ Jill Wilson, et al., Cong. Rsch. Serv., R47848, *Nonimmigrant Overstays: Overview and Policy Issues*, at 1 n.6 (2023) (estimating that about six million noncitizens in United States entered without admission).

authorization to work while that application is pending (which is still the case today). *Id.* He has never been arrested for or charged with a crime. *Id.*

On September 26, 2025, immigration officers arrested Mr. Barbosa da Cunha while he was driving to work in Norwood, Massachusetts. Pet. App. 7a. The administrative warrant authorizing his arrest cited § 1226 as the statutory basis for his detention. *Id.* DHS then initiated removal proceedings, charging him as inadmissible because he was present without admission or parole and lacked valid immigration documents. Pet. App. 8a.

Mr. Barbosa da Cunha requested a bond hearing, but an immigration judge denied that request under the government's new mandatory-detention policy, declaring that § 1225(b)(2)(A), rather than § 1226(a), governed his detention. *Id.* He then filed a petition for a writ of habeas corpus, arguing that his mandatory detention violated § 1226(a) and its associated regulations, and due process. *Id.* Mr. Barbosa da Cunha initially filed the petition in the District of Massachusetts, but the parties agreed to transfer it to the Western District of New York after the government transferred him to an ICE detention facility in Buffalo, New York. Pet. App. 8a n.2. At no point did the government argue that his detention was necessary to ensure his appearance or protect the community from harm.

The district court granted the petition for a writ of habeas corpus, agreeing that § 1226(a) governed Mr. Barbosa da Cunha's detention and ordered the government to either provide a bond hearing or

release him. Pet. App. 2a, 8a. Because the district court granted relief on statutory grounds, it declined to resolve his alternative due process claim. Pet. App. 84a. Following the district court decision, an immigration judge held a bond hearing and determined that Mr. Barbosa da Cunha presented neither a danger to persons or property nor a flight risk. Pet. App. 2a, 8a. He was released on bond. *Id.*

The government appealed the order granting Mr. Barbosa da Cunha habeas relief. Pet. App. 2a. The Second Circuit unanimously affirmed the habeas grant on statutory grounds. Pet. App. 7a. The court held, based on the statutes' plain text, that Congress limited § 1225(b)(2)(A) to only those “applicants for admission” who are also “seeking admission.” Pet. App. 15a–17a. Mr. Barbosa da Cunha was not, however, “seeking admission” within the INA’s definition of “admission,” at the time of his arrest because, as a long-time resident of the country, he was not seeking lawful entry into the United States. Pet. App. 15a–24a (citing 8 U.S.C. § 1101(a)(13)(A)).

The court also found that its reading of the plain text was “reinforced by the statutory context, structure, history, and purpose, as well as the nearly three decades of Executive Branch practice enforcing the immigration laws with that understanding and the accompanying congressional silence in light of that practice.” Pet. App. 10a. In particular, the court found that the government’s reading of § 1225(b)(2)(A) to mandate detention for every unadmitted noncitizen would render superfluous much of § 1226(c)’s carefully drawn mandatory-detention scheme, including the 2025 Laken Riley Act. Pet. App. 41a–44a.

The court also noted that, while Congress in 1996 recognized that mandatory detention under § 1226(c) would strain the government’s limited detention capacity and therefore delayed the provision’s implementation in IIRIRA, Pet. App. 47a–48a, it created no comparable safety-valve for § 1225(b)(2)(A)—even though the government’s interpretation would have subjected roughly two million noncitizens to mandatory detention at that time. Pet. App. 48a. The court found it implausible that Congress would have silently imposed a vastly larger detention mandate on the Executive without any acknowledgment in IIRIRA. *Id.*

Finally, the court relied on the government’s nearly three-decade practice of consistently affording bond to noncitizens like Respondent. Pet. App. 50a–55a. The court of appeals further explained that, even if the statutory text were ambiguous, constitutional avoidance would independently favor Respondent’s reading—but also made clear that “this case can be resolved based on the text of Sections 1225(b)(2)(A) and 1226(a) alone.” Pet. App. 55a–59a.

Judge Cabranes joined the court of appeals’ opinion “wholeheartedly and without reservation,” and wrote a separate concurrence to elaborate on several additional points. Pet. App. 61a–68a.

The Second Circuit is now among seven courts of appeals that have agreed with Respondent that noncitizens arrested inside the country are generally subject to § 1226(a), not § 1225(b)(2)(A). *See Guerrero-Orellana v. Moniz*, No. 25-2152, --- F.4th ---, 2026 WL 2352042 (1st Cir. Aug. 13, 2026); *Barbosa da Cunha v. Freden*, 175 F.4th 61 (2d Cir. 2026); *Lopez-Campos*

v. Raycraft, 175 F.4th 713 (6th Cir. 2026); *Cirrus Rojas v. Olson*, No. 25-3127, --- F.4th ----, 2026 WL 2198315 (7th Cir. July 30, 2026); *Rodriguez Vazquez v. Bostock*, No. 25-6842, --- F.4th ----, 2026 WL 2196424 (9th Cir. July 30, 2026); *Santillan Quiroz v. Mullin*, 180 F.4th 1226 (10th Cir. 2026); *Hernandez Alvarez v. Warden, Fed. Det. Ctr. Miami*, 175 F.4th 1258 (11th Cir. 2026). In contrast, only two courts of appeals agree with the government’s new interpretation of the statutes. *Buenrostro-Mendez v. Bondi*, 166 F.4th 494 (5th Cir. 2026); *Herrera Avila v. Bondi*, 170 F.4th 1128 (8th Cir. 2026).

As noted, the noncitizens in *Buenrostro-Mendez* have petitioned for certiorari seeking review of the same statutory question presented in this petition. *Buenrostro-Mendez v. Blanche*, No. 26-43 (cert. pet. filed July 2, 2026).

The Sixth Circuit is the only court of appeals to decide the due process issue to date. The government has filed another petition seeking review of that court’s decision, which raises the same statutory question presented here and the constitutional due process question. *Raycraft v. Lopez-Campos*, No. 25-1415 (cert. pet. filed June 22, 2026).

REASONS FOR GRANTING THE PETITION

The government asks this Court to hold this case for *Raycraft v. Lopez-Campos*. Cert. Pet. 11–13. But the Court should instead grant review here or, alternatively, in the pending petition in *Buenrostro-Mendez v. Blanche*, No. 26-43 (cert. pet. filed July 2, 2026). For the same reasons discussed in the petition in *Buenrostro-Mendez*, either this case or *Buenrostro-Mendez* presents the best vehicle for resolving the

statutory question presented because both squarely present the issue and do not raise a separate constitutional issue that may never need to be decided by this Court. *Lopez-Campos*, by contrast, adds a separate due process question that involves no circuit split, and that this Court need not reach if Respondent prevails on his statutory arguments.

1. The parties agree that the statutory question of which detention statute governs noncitizens like Respondent warrants this Court’s review. The statutory question has produced a 7-2 circuit split and is exceptionally important and ready for review. *Supra* at 16–17.

2. The separate due process question presented in *Lopez-Campos*, however, is not independently certworthy. Unlike the statutory issue, the due process question has produced no circuit split, and no circuit other than the Sixth Circuit has held that applying § 1225(b)(2)(A) to noncitizens like Respondent violates due process. Furthermore, if Respondent here or the petitioners in *Buenrostro-Mendez* prevail on the statute, there will be no need to decide the due process question at all.

The constitutional question in *Lopez-Campos* is also unsuitable for review because it substantially overlaps with the due process question already before the Court in *Genalo v. Black*, No. 25-886 (cert. granted June 15, 2026). *Genalo* concerns an as-applied due process challenge to mandatory detention under another provision of the INA, § 1226(c). The Court’s decision there likely will inform any constitutional question that remains if the government ultimately prevails on the statutory issue here. For instance, in

both *Genalo* and *Lopez-Campos*, the government argues that noncitizens detained pending their removal proceedings “have no cognizable procedural-due-process right to a bond hearing”; that mandatory detention under the relevant statute does not implicate a fundamental liberty interest and satisfies rational-basis review; and thus, that no individualized bond hearings are constitutionally required. *Compare* Cert. Pet., *Lopez-Campos*, No. 25-1415, at 26–28, *with* Cert. Pet., *Genalo*, No. 25-886, at 23–26. The Court’s resolution of these arguments in *Genalo* will almost certainly affect the analysis of the due process question in *Lopez-Campos*.

There is no need to grant certiorari prematurely when the Court’s disposition of *Genalo* likely will shape its disposition of the constitutional issues presented in *Lopez Campos*.

3. Contrary to the government’s contention, *Lopez-Campos* is not the superior vehicle. The government argues that the Court should address the statutory and due process issues because they are “inextricably linked,” Cert. Pet. 12–13, but that is wrong. Because the Second Circuit and the district court disposed of the case on statutory grounds alone, it did not reach Respondent’s due process claim. Although the court did address constitutional avoidance as an *additional* reason to rule for Respondent—assuming *arguendo* statutory ambiguity, *see* Pet. App. 55a—it made crystal clear that its primary holding was that the plain text, structure, history, and purpose of the statutes compelled Respondents’ interpretation, making its discussion of constitutional avoidance unnecessary. *See* Pet. App. 59a–60a.

CONCLUSION

For these reasons, the Court should grant this petition or, in the alternative, hold it pending this Court's disposition of the petitions in *Buenrostro-Mendez* and *Genalo* and dispose of it as appropriate.

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